

HOUSE No. 1132

The Commonwealth of Massachusetts

PRESENTED BY:

Marjorie C. Decker

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act relative to external reviews and patient protection.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Marjorie C. Decker</i>	<i>25th Middlesex</i>	<i>1/16/2025</i>
<i>Estela A. Reyes</i>	<i>4th Essex</i>	<i>5/28/2025</i>

HOUSE No. 1132

By Representative Decker of Cambridge, a petition (accompanied by bill, House, No. 1132) of Marjorie C. Decker relative to external reviews and patient protections. Financial Services.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act relative to external reviews and patient protection.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 Section 24 of chapter 176O is hereby amended by adding the following paragraphs:

2 (f) Every external review must be conducted by a physician licensed to practice in the
3 Commonwealth of Massachusetts and certified in the medical specialty underlying the medical
4 claim at issue. Furthermore, such physician shall be identified to the patient, shall provide a
5 written report to the patient detailing any and all findings and opinions rendered along with
6 citations to any and all applicable peer reviewed materials which form the basis for such
7 opinions, shall, when circumstances warrant, conduct a physical examination of the patient, and
8 shall carry malpractice insurance for services rendered as part of the physician/patient
9 relationship established through the external review process.

10 (g) The patient may appeal any external review decision in the superior court department
11 of the trial court and, if successful, shall be entitled to recover any and all attorney's fees and
12 costs incurred from the risk-bearing provider organization.